Revision Date
06/01/2019

Background:
Household in which all eligible members receive Public Assistance (PA) benefits shall be considered categorically eligible (CE) for CalFresh benefits because of their status as PA recipients. This section is being revised to reflect the change in regulation as a result of the reversal of the SSI/SSP cash-out policy. Effective June 1, 2019, individuals receiving SSI/SSP are eligible for CalFresh, provided they meet all other eligibility requirements. Households in which all members receive or are authorized to receive SSI/SSP benefits are categorically eligible for CalFresh. Federal Nutrition Services (FNS) identifies three types of Categorical Eligibility (CE):

Traditional Categorical Eligibility (CE)

Traditional CE refers to the mandatory policy that makes households eligible for CalFresh benefits because the household receives cash benefits such as Temporary Assistance for Needy Families (TANF), CalWORKs in California, or General Relief (GR).

Modified Categorical Eligibility (MCE) or Broad-Based Categorical Eligibility (BBCE)

MCE/BBCE refers to the policy that makes most households categorically eligible for CalFresh because they receive a non-cash TANF/MOE-funded benefit or service, such as PUB 275 in California. MCE is only intended to exempt resources for households who meet all other conditions of eligibility.

Narrow Categorical Eligibility

This refers to the policy that makes a smaller number of households eligible through the receipt of a TANF/MOE-funded service such as childcare or counseling.

Note: Non-Assistance CalFresh (NACF) does not include cases within this category.

Purpose:
This section describes the regulations and eligibility requirements for CE.

Policy:
63-120.1 Categorical Eligibility (CE):
A household will be considered (traditional) Categorical Eligible (CE) when ALL CalFresh eligible members receive or are authorized to receive cash aid through a Public Assistance (PA) program funded in full or in part with federal money under Title IV-A or with state money counted for maintenance of effort (MOE) purposes under Title IV-A.

The following cash aid customers are considered CE:

- CalWORKs recipients (Immediate Need payments are also considered a PA benefit)
- State funded CalWORKs in which household members have reached their federal TANF time limit. These households will continue to receive benefits that are means-tested and primarily TANF MOE-funded
- CalWORKs Diversion payments
- Tribal TANF
- General Relief (GR)
- SSI/SSP

ACIN I-34-05; I-16-05 and I-18-07

The inclusion of the following household members does not affect CE status:

- Ineligible noncitizens
- Ineligible students
- SSN disqualified persons
- People institutionalized in an unauthorized facility
- A household member who is disqualified for failure to comply with CalWORKs Welfare to Work requirements **and** CalFresh Employment and Training requirements
  ACIN I-34-99

CE is not affected when the household is authorized to receive CalWORKs or GR benefits. This includes households whose:

- Cash overpayment adjustment results in the issuance of zero PA benefits
- GR benefits have been suspended or recouped, or those who are entitled to GR benefits but are not paid such benefits because the grant is below the minimum payable under the GR program
- PA benefits have been suspended, or those who are entitled to PA benefits but are not paid such benefits because the grant is less than $10.00
  MPP 63-102(p)(12)(a)
- If a household member loses both CalWORKs and CalFresh eligibility, the remaining household members' CE status is not affected. The disqualification of a CalFresh household member does not affect the eligibility of an otherwise eligible CE household ACIN 1-34-99

63-120.2 Non-Categorically Eligible Households:

The following households are not considered CE and are subject to all CalFresh eligibility regulations:

- Households in which an adult(s) has/have timed out of both the federal Temporary Assistance for Needy Families (TANF) program **and** the state CalWORKs program
- Mixed households (63-302.3)
- A household with disqualified members (Intentional Program Violation (IPV), fleeing felons, probation parole violators) ACIN I-58-08; ACL 98-19
- A household with any member(s) receiving or authorized to receive state-funded California Food Assistance Program (CFAP)
- CalWORKs' family reunification parents. These individuals are not CE for CalFresh benefits because they are not receiving or authorized to receive cash benefits
- A household with ineligible members under the striker provisions (63-101.12)

63-120.3 Categorical Eligibility (CE) Verification Requirements:

CE means being considered eligible for CalFresh because of the household's eligibility for CalWORKs or GR benefits. CE only relates to federal SNAP eligibility.

The following items will be verified for the Public Assistance (PA) programs and will not need to be re-verified for CalFresh program, unless questionable.

- Resources
- Gross and net income limits (income tests)
- Social Security Number information

- Sponsored noncitizen information
- Residence

ACIN I-79-03

Use the following criteria when determining if a household is categorically eligible. If the household:

- Contains only CalFresh eligible members that are PA recipients
- Meets the definition of a household as specified in 63-101
- Includes all persons who purchase and prepare food together in one CalFresh household regardless of whether they are separate units for PA purposes
- Has not been disqualified or does not include persons who have been disqualified IPV or fleeing felons
  ACIN I-58-08.

63-120.4 Categorically Eligible General Relief (GR) Households:

Any household in which all CalFresh eligible members receive or are authorized to receive GR benefits are considered eligible for CalFresh because of their status as GR recipients.

The eligibility factors that are acceptable for CalFresh eligibility without verification are:

- Gross and net income limits
- Resources
- Sponsored noncitizen information
- Residency

A household is not considered CE when:

- The household refuses to cooperate in providing information that is necessary for making an eligibility determination or for completing any subsequent eligibility review
- The household is disqualified because the head of household fails to comply with a work requirement
- A household who is ineligible under the striker provisions
- A household knowingly transferred resources for the purpose of qualifying or attempting to qualify for assistance

The following individuals are not included as a member of an otherwise CE household:

- Disqualified for an Intentional Program Violation
- Not the head of household and disqualified for failure to comply with the work requirements as specified in 63-900
- Disqualified for failing to provide the Social Security Number
- Ineligible noncitizen
- Ineligible student
- Institutionalized in a nonexempt facility as specified in 63-123

Note: Advise all GR applicant households of the potential eligibility for CalFresh benefits and provide them with the CalFresh application form CF 285 or SAWS 2 Plus.

63-120.5 Modified Categorical Eligibility (MCE):
The following regulations apply to MCE:

Family Planning – PUB 275 Brochure

- The PUB 275 must be included in all application packets The PUB 275 will need to be provided to each household only once.
- Receipt of the PUB 275 does not qualify a household for MCE. The MCE evaluation must be documented for Quality Control purposes.

Expedited Services

- Refer to 63-105

MCE Households

- Households with gross income at or below 200% of FPL
- Households that do not include any of the following individuals:
  - A member who has been disqualified for an IPV
  - A head of household who has failed to comply with work requirements

Procedure:
Refer to CalFresh Processing Guide #120-01

Determining the Allotment for an MCE Household:
MCE households consisting of:

One or two members are entitled to at least the minimum allotment even if their net income exceeds the Maximum Net Income limit.

Three or more members will receive an allotment according to the household size as determined by the CalFresh Allotment Table.

- If the minimum allotment determined by the CalFresh Allotment Table is zero, deny the application or discontinue the case for exceeding the net income limit. See the "How to Use the CalFresh Allotment Table Desk Aid."
- If the allotment amount is less than $10 or is $0 in the month of application due to proration, but the household is eligible to receive ongoing benefits, approve the application without issuing benefits for the application month. See 63-251.2.

Refer to:

- 63-1101.5 CalFresh Allotment Tables
- 63-254.7 Minimum Monthly Allotment
- 63-254.6 CalFresh Allotment Computation

References:

ACL 18-90
ACWDL dated June 30, 2014
ACIN I-34-05; I-16-05 and I-18-07
ACIN I-34-99
MPP 63-102(p)(12)(a)
ACIN I-58-08; ACL 98-19
ACIN I-79-03

ACIN I-50-13
ACL 12-62 & 13-32
63-1101.5, CalFresh Allotment Tables
63-254.7, Minimum Monthly Allotment
63-254.6, CalFresh Allotment Computation
CalFresh Allotment Table
How to Use the CalFresh Allotment Table Desk Aid
CalFresh Processing Guide #120-01
MCE Evaluation Flowchart Desk Aid

Sunset Date:
This policy will be reviewed for continuance on or by 06/30/2022

Approval for Release:



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Eligibility Operations